HIGH COURT OF KARNATAKA

APPELLATE JURISDICTION · SINGLE JUDGE

Criminal Petition No. 4921 of 2023 **CNR: KHC010049212023**

Date: 14 August, 2023 *Citation: 2023:KHC:4921*

CORAM: Hon'ble M. Nagaprasanna, J.

Petitioner: Naveen Kumar & Elderly Parents

- VERSUS -

Respondent: State of Karnataka & Estranged Wife

DOMAIN: CRIMINAL LAW & QUASHING U/S 482 CRPC **STATUS: Good Law (Binding Section 482 Precedent)**

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

Impleading all relatives of the husband on general and omnibus allegations without specific overt acts is an abuse of judicial process. The inherent power under Section 482 CrPC must be exercised to prevent vexatious harassment.

STATUTES APPLIED: Section 482 CrPC, Section 498A IPC, Section 506 IPC

DISPOSITION: CRIMINAL PROCEEDINGS AGAINST IN-LAWS QUASHED

EXECUTIVE RATIO SUMMARY:

Justice M. Nagaprasanna quashed Section 498A IPC proceedings against distant relatives and elderly parents-in-law living separately, holding that omnibus allegations without specific dates or overt acts constitute abuse of process.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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